THE 1974 BRUSSELS CONVENTION RELATING TO THE DISTRIBUTION OF PROGRAM-CARRYING SIGNALS TRANSMITTED BY SATELLITE: AN ASPECT OF HUMAN RIGHTS

*Carl Q. Christol**

One of the most impressive world developments of the past several decades has been the attention accorded to human rights. Human beings have reflected their commitment in countless ways. Some, if not all, governments have adopted and implemented programs. Many international institutions, both regional and universal, have formulated projects and have given attention to the perfection of techniques for the protection of human rights.

Among those human rights that have received considerable attention has been freedom of information, including the free dissemination of ideas by electronic means. Earth-orbiting satellites have become a basic delivery system for the transmission of an impressive variety of electronic signals. Such signals carry the work product of human ingenuity. This enormously varied product is generally regarded as having a monetary value and is referred to as intellectual property.

With the increasing perfection of broadcast and reception techniques it is possible to employ space objects to transmit program-carrying signals from an originating organization in one State to receivers in other States.[1] Such receivers can be a central organization that engages in the transmission or retransmission of signals to intended recipients; they can be community receivers or, they can be direct receivers, *e.g.*, home receivers. The present state of the art allows for the first two types of receptions. Direct

---

*Professor of International Law and Political Science, University of Southern California. The views expressed in this article are those of the author and are not necessarily connected with any organization of which he is a member.

[1]The term "originating organization" is used here in the same sense as it was defined in Article 1 of the Brussels Convention Relating to the Distribution of Program-Carrying Signals Transmitted by Satellite of May 21, 1974, namely, "the person or legal entity that decides what program the emitted signals will carry." Terms contained in the foregoing definition were also defined. Thus a "signal" is "an electronically generated carrier capable of transmitting programs." A "program" is "a body of live or recorded material consisting of images, sounds or both, embodied in signals emitted for the purpose of ultimate distribution." An "emitted signal" is "any program carrying signal that passes through a satellite." Other definitions employed in the Convention include "derive signal." This is a signal "obtained by modifying the technical characteristics of the emitted signal, whether or not there have been one or more intervening fixations." A "distributor" is the "person or legal entity that decides that the transmission of the derived signals to the general public or any section thereof should take place." Finally, a "distribution" is the "operation by which a distributor transmits derived signals to the general public or any section thereof." *13 Int'l. Leg. Mat.* 1447 (1974) U.S. House of Representatives, Committee on Science and Astronautics, 93d Congress, 2d Session, (1974).

broadcast satellites (DBS), although increasingly feasible from a technical point of view, will require a considerable amount of improvement before they reach the standards enjoyed at the present by recipients of domestic television broadcasts.[2]

I. THE ROLE OF UNESCO IN THE BRUSSELS CONVENTION

The 1974 Brussels Convention resulted from UNESCO's effort to facilitate and protect the dissemination of information on a worldwide basis. At a meeting in Geneva in 1968 UNESCO and the World Intellectual Property Organization (WIPO) combined to explore the legal issues that were expected to arise from the different ways in which television broadcasts could be received in countries other than those of the sender. Under the auspices of these international organizations a meeting was convened in Lausanne in April 1971 to study the means whereby copyright protection could be extended to intellectual property transmitted by satellite. Considered to be within the range of such protection were the rights of producers, performers, and broadcasting organizations. It was concluded that the rights needing protection could be assured only through the drafting of a new international agreement. Thereupon a draft convention was prepared and submitted for consideration to a meeting of legal experts in Paris in May 1972.

The general conference of UNESCO secured the adoption on November 15, 1972, of the controversial Declaration of Guiding Principles on the Use of Satellite Broadcasting for the Free Flow of Information, the Spread of Education and Greater Cultural Exchange.[3] The preamble of the Declaration identified facts or expectations that were agreeable to all, or almost all, of the participants. Included were satellite broadcasts which were a new dimension in international communication with programs in the future available for community and individual reception. There were needs for international agreements to promote the free flow of ideas by word and image. Basic provisions of the UN Charter were relevant. Articles 19, 26, and 27 of the Universal Declaration of Human Rights were particularly important, including the guarantees set out in Article 27 (2) which accorded everyone "the right to protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author." General Assembly Resolution 110 (II) of November 3, 1947, retained its original vigor. And there existed a need for regional and international organizations, including broadcasting associations, to promote and encourage regional cooperation in

---

[2]For a more detailed appraisal of the technical problems affecting the time when such direct broadcasts may become a reality, *see* "The 1974 Brussels Convention Relating to the Distribution of Program-Carrying Signals Transmitted by Satellite: Its Strengths and Weaknesses" which will appear in Proc. 20th Colloquium on the Law of Outer Space, *Int'l Inst. Space L.*, 28th Int'l Astronautical Cong., Prague, Czechoslovakia, (September, 1977).

[3]UNESCO Doc C/98 Annex - Recommendations; 11 *Int'l Leg. Mat.* 1476 (1972). The Declaration was adopted by a vote of 55 in favor, 7 against (Australia, Canada, Costa Rica, Denmark, the Federal Republic of Germany, the United Kingdom, and the United States), with 22 abstentions.

the establishment and operation of regional satellite broadcasting services, pursuant to General Assembly Resolution 2733 (XXV) of December 16, 1970.

A number of the preambulatory expectations were set forth in the body of the Declaration, including, for example, the provision in Article III (2) that "the use of satellites for broadcasting should be based on international cooperation, world-wide and regional, intergovernmental and professional." Articles V, VI, and VII identified important objectives of satellite broadcasting, namely, the free flow of information, the spread of education, and the promotion of cultural exchange.

Article IX, relating to existing differences over the role of direct broadcast satellites, referred to the necessity for States to "reach or promote prior agreements" relating to the transmission via DBS of programs to the populations of countries other than to the country of origin of the transmission. States that opposed the final Declaration did so principally because the quoted language indicated the need for broadcasters to obtain the prior consent of the State from which broadcasts were emitted prior to such transmissions. This was considered objectionable in that instead of furthering the free transmission of information it could provide limitations upon such transfer. Article IX was also encumbered in its second paragraph with the provision that: "With respect to commercial advertising its transmission shall be subject to specific agreement between the originating and receiving countries."

The negotiations produced a third meeting in Nairobi in July 1973. Further refinements took place. This led to the diplomatic conference in Brussels which convened on May 6, 1974. The outcome of its work was the Convention Relating to the Distribution of Program-Carrying Signals Transmitted by Satellite.[4]

Delegations from 57 States participated in the Conference, while ten States sent observers. Observers were present from five intergovernmental organizations and from 17 international nongovernmental organizations. The Convention was signed on May 21, 1974 by the United States and 14 other countries: Belgium, Brazil, Cyprus, the Federal Republic of Germany, Israel, Italy, the Ivory Coast, Kenya, Lebanon, Mexico, Morocco, Senegal, Spain, and Switzerland. Participants not signing the Convention included Byelorussian Soviet Socialist Republic, Czechoslovakia, Hungary, Ukrainian Soviet Socialist Republic, the U.S.S.R., and Yugoslavia, as well as many Western European states, Canada, and Japan.

The 1974 Brussels Conference sought to steer a practical course between the emphasized assurances contained in Article 27 (2) of the Universal Declaration of Human Rights, the broad principles of freedom of information, the constitutional guarantees of some States against having to obtain prior consent for the transmission of ideas, and the reluctance of some receiving States to allow the unencumbered entry into

---

[4] 13 *Int'l Leg. Mat.* 1447 (1974); Committee on Science and Astronautics, U.S. House of Representatives, 93d Cong., 2d Sess., Committee Print, Serial U (July, 1974).

such States of materials that might be found to be objectionable. That such a balance was missing is identified by the fact that several of the principal States, *e.g.*, USA and FRG which had been in opposition to the UNESCO Declaration, favored the Brussels Convention, while some of those that had favored the UNESCO Declaration did not sign the Brussels Convention, *e.g.*, USSR and the socialist States, excluding Yugoslavia. The United States had placed its objection to the UNESCO Declaration on the principle that domestic censorship should not be raised to the status of an international legal concept.

From 1975 to the present the Convention has been signed by these additional States: Argentina, Austria, France, and Yugoslavia, while the accession of Nicaragua has been deposited. By the close of December 1976 ratifications had been deposited by Kenya, Mexico, and Yugoslavia. Before the Convention can enter into force five instruments of ratification, acceptance, or accession must be deposited with the United Nations. Reservations to the Convention are not to be permitted. As of November 1977 the Convention had not entered into force.

II. THE BRUSSELS CONVENTION

The negotiations in Brussels in 1974 were influenced by a growing recognition that television broadcasts can be received in very large geographical areas. Because of the presence of many States within these areas, there are separate copyright laws and practices. With the broadcast of intellectual property into such States a variety of legal relationships has emerged, including the protection of such property rights. Right and duty relationships exist between the broadcasting services, *e.g.*, originating organizations and the foreign purchaser of such property, the originator and those who may wrongfully intercept and apply to their own interests such property, and in both cases between the originator and its program suppliers. The rights of the owners of the transmitted property are at stake.

Television programs on the "downleg" from a satellite are openly accessable to interception by unintended receivers. The latter can effect a retransmission to unintended audiences without compensating the initial broadcaster. The broadcaster, being unable to protect those who have conveyed intellectual property to him, finds himself at a disadvantage in negotiating with the owners of such property. This has been summarized thusly: "If the broadcaster cannot guarantee control over the retransmission of a particular program to audiences within a specific country or geographic area, he will be called upon to pay his program contributors for coverage in the additional area. That area is likely to include countries offering no legal protection, under concepts of copyright or neighboring rights, against retransmission of the programs on their territories. If the originating broadcaster receives no benefit from the expanded coverage, he is unlikely to be willing to pay program contributors

substantially higher licensing fees to cover it, and the result could well be a decision not to use the satellite at all.''[5]

The Brussels Convention in its final form allowed the broadcasting services, *e.g.*, originating organizations, and the creators of program content to adopt a common stand against potential poachers. Through nation-state commitments the owners of intellectual property and programs were to be protected against unauthorized distributions. As between the originating organizations and the contributors to programs the former were to have the power to decide upon the areas to which the programs would be transmitted, while the contributors were free to negotiate with the originating organizations concerning the destination of the signals carrying their work product.

Property values exist in the product of human ingenuity and creativity constituting the broadcast program. At first glance one might assume that program content, with its identifiable value, and the means employed for the transmission of such property values were inseparably linked for analytical and legal purposes. However, in order to provide protection to the owner of the property and allow prospective recipients of such property to exercise their own judgments as to the suitability of programs, it must be asked whether the factors of program content and the methods available for the transmission of programs should be treated separately. This would allow for taking account of the fact that some recipients would be eager both to receive and pay for the programs, while others might not wish to receive such materials and therefore would not be under an obligation to pay for them. The Brussels Conference attempted to make a distinction between the property value of program content and the technical capacity of satellites to transmit programs. The Convention dealt with the transmission of signals and not their content. The subject of the treaty was not the content but the container.

This distinction allowed the Convention to focus on the duty of valid recipients of transmitted programs to prevent the distribution of such programs to persons not entitled to receive them. It therefore became unnecessary for the Convention to fix specific property rights in order to assure that the programs of originating organizations would not come into unauthorized hands. The Convention did not confer on originating organizations the exclusive right to authorize the use of programs broadcast by satellite. The Convention established obligations for receiving States rather than for sending States. Moreover, following this policy lead it became possible for States engaged in preventing the internal dissemination of the content of foreign broadcasts to continue along such lines.

The Convention, in its final form, concentrated on the protection of the existing property rights of broadcasting services, authors, and other owners of copyrighted

[5] ''Draft Report of the General Rapporteur,'' 13 *Int'l. Leg. Mat.* 1449 (1974).

materials, performers, and phonogram producers.[6] However, flowing through the negotiations from their beginning stages were concerns for general human rights including the freedom of information and future general prospects of satellite communications. Successive drafts of the Convention were obliged to take into account the scientific and technological progress beyond the point-to-point television broadcast capabilities that uniquely existed in 1968. With rapid changes in the art the preparation of the respective drafts has been described as "a race between law and technology."[7]

Because of existing ideological preferences either for open societies with a free movement of almost all forms of information—following national commitments to freedom of speech and freedom of expression—or for closed societies wherein governmental control over the distribution of ideas is acceptable, it was inevitable that there would be serious differences as to the terms of the final agreement. During the course of the negotiations the Soviet Union repeatedly proposed amendments to the text of the convention and to the preamble that would have provided for governmental control over the program content of television broadcasts. Since the United States considered such proposals to be in violation of its firm commitment to democratic principles and the First Amendment to the U.S. Constitution, it was obliged to oppose such amendments.[8] To avoid such a basic difference, while at the same time seeking to protect property rights flowing or resulting from television broadcasts, the negotiators developed an interesting formula.

The negotiators rejected the position that governments were entitled to control the program content televised from satellites. However, participants were in agreement that a receiving State, by reason of its sovereignty, could exclude foreign broadcasts and might refuse to enter into agreements with foreign broadcasters allowing their programs to have entry into the objecting State. But, in the event that there was a willingness on the part of the receiving State, then the receiving State was obliged to take "adequate measures to prevent the distribution on or from its territory of any program-carrying signal by any distributor for whom the signal emitted to or passing through the satellite is not intended."[9]

---

[6]The spirit of the Convention sought to "protect a Legitimate right of Property." *See* Ferrer, *The Brussels Convention Concerning the Protection of Signals Transmitted from Satellites*, Proc. 17th Colloquium on the Law of Outer Space 26-28 (1975).

[7]13 *Int'l. Leg. Mat.*, *supra* note 5, at 1449.

[8]*See generally*, S. Lay, A. Gribble, R. Copeland, and K. Kind, *Preliminary Draft of a Study of Censorship Provisions of a Proposed Telecommunications Satellite Treaty and the Constitution of the United States of America*, Proc. 17th Colloquium on the Law of Outer Space, Int'l Inst. S.L. 72 (1975); Price, *First Amendment Constraints and the Direct Broadcast Satellite Controversy*, Am. Soc'y Int'l, L. Direct Broadcasting from Satellites: Policies and Problems, 35 (1975).

[9]Convention, Art. 2 (1).

Because the problem was perceived in the foregoing fashion and was resolved in the quoted terms, the signatory States were allowed to fashion on their own account the most appropriate means for suppressing the misuse of foreign programs. This might include penal sanctions, withdrawal of benefits, registration requirements, and other regulatory procedures. However, pursuant to paragraph six of the Convention the "adequate measures" open to States to secure enforcement of the Convention were not to extend to limitations upon the present or future rights of those owning intellectual property or broadcasting organizations "whether the protection of those rights derived from domestic law, from either of the copyright conventions, or from the Rome Convention."[10]

Such an approach allowed the Convention to become one of public international law, in which enforcement duties were assigned to States, rather than a private international law agreement whereby signatory States would have guaranteed the validity of property rights in copyrighted materials when such property rights had their locus within the broadcasting State. In short, the Convention engaged signatories to prevent unauthorized distributions rather than requiring receiving States to "enforce individual property rights in the form of an exclusive right of authorization."[11] This allows for the conclusion that "since the Convention itself would confer no new rights upon broadcasters, there was no longer any corresponding need to create additional new rights in the Convention to safeguard the interests of program-contributors."[12]

Viewed in this perspective the Convention offered to the owners of intellectual property no enlargement of established property rights. Rather, it afforded at the world level a means whereby existing property rights might not be used by pirates or poachers to the detriment of the owner. The means, following the identification of an international standard of behavior and a promise on the part of participating States, was to employ existing or newly created municipal processes in order to thwart the actions of pirates and poachers. Thus, to the extent that agreement exists that such programs may be beamed across national frontiers (for example, as the result of understandings between national originating organizations) the Convention contributed to a regularized, and presumably more wideranging, transmission of broadcast programs. To the extent that there was confidence the broadcast programs would be received by the intended audience, a greater likelihood exists that the broadcasts would take place. However, with poachers in action, the programs could still reach unintended audiences. Assuming that the owners of programs had derived compensation from sources within the sending State, and therefore had no further claim to copyright protections, the programs could still be transmitted to possibly willing audiences in possibly unwilling

---

[10] 13 Int'l. Leg. Mat., *supra* note 5, at 1462. The Rome Convention of October 26, 1961 provides protection to performers, producers of phonograms, and broadcasting organizations.

[11] *Id.* at 1450.

[12] *Id.*

States. Presumably the unwilling State would be able to employ legal processes of a kind not dissimilar from those available to it where it was endeavoring to impede the activities of pirates or poachers.

III. TERRITORIAL LIMITATIONS IN THE CONVENTION

The Convention in several articles refers to conduct that takes place "on or from the territory" of a signatory State. Article 2 (1) provides that parties must "take adequate measures to prevent the distribution on or from its territory of any program-carrying signal by any distributor for whom the signal emitted to or passing through the signal is not intended." However, paragraph three of Article 2 excuses signatories in certain circumstances from the foregoing obligation. Paragraph one, according to paragraph three, does not apply to "the distribution of derived signals taken from signals which have already been distributed by a distributor for whom the emitted signals were intended."[13] Paragraph three assumes a situation where a chain of distributions will take place following a satellite transmission, that an unauthorized distributor has intercepted the signal along the chain, and a distribution has then been effected on or from the territory of a party.

These references stress the fact of an initial satellite transmission of a program as well as the significance of the distribution on or from the territory of the signatory. The existence of a transmission on or from the territory, however, need not fall within the terms of the agreement. If, for example, there has been a series of terrestrial broadcasts with an unintended distributor at the end of the chain, but where higher in the chain there had been an intended distributor from the satellite, "the fact that the signals were emitted through a satellite would not make the Convention applicable."[14] Such acts fall within the prescriptions of the October 26, 1961 Rome Convention Dealing with Rebroadcasting. The Convention would apply if none of the distributors higher in the connecting chain with the satellite were an intended receiver from the satellite. Thus, if an unintended distributor in a nonsignatory State were to intercept and broadcast a program, and if this transmission were picked up from that distribution and redistributed "by an unintended distributor in a Contracting State, the Convention would apply."[15] The provisions relating to territory would apply since the last mentioned distribution was effected in the territory of a signatory State.

Article 4 refers to the distribution of signals on the territory of a signatory State. It has been suggested that this article providing that the Convention "shall in no way be interpreted as limiting the Right of a Contracting State to apply its domestic law in order

---

[13] *Id.*, at 1447. *See* note 1 for the definition of terms.

[14] *Id.*, at 1460.

[15] *Id.*

to prevent abuses of monopoly'' should be strictly construed.[16] Article 8 refers to the emission of signals from the territory of signatory States. Apparently the term territory was used in order to effect a distinction between the emission of signals from satellites in space and from territorial emissions. Moreover, Article 1 defines a satellite as any device in ''extraterrestrial space capable of transmitting signals.''

The Convention does not refer to the transmission of signals from vessels located on the high seas or other ocean-based transmissions. There seem to be no technical reasons why signals cannot be intercepted on the ocean and distributed to land areas where further transmission can take place on or from territories falling under national sovereignties.

Quite independently of the UNESCO and WIPO interest in protecting intellectual property from coming into the hands of unintended recipients, the Third United Nations Conference on the Law of the Sea has endeavored to place limits on unauthorized broadcasting from the high seas. In Article 97 of the Revised Single Negotiating Text (RSNT) of May 10, 1976, the Second Committee of the Conference identified what constitutes unauthorized broadcasting for the purposes of the proposed Convention. It is taken to mean ''the transmission of sound radio or television broadcasts from a ship or installation on the high seas intended for reception by the general public contrary to international regulations.''[17] The definition makes no distinction concerning the source of the signals, whether they have been received from a satellite, or what kind of chain of broadcasts has taken place prior to receipt and retransmission from the vessel.

The powers of the International Telecommunications Union (ITU) and of member States to secure compliance with frequency allocations have been limited. In commenting on the pre-1965 situation in Europe, it has been stated that no means had ''been provided in the conventions for enforcing regulations against stations which do not come within the jurisdiction of a member state.'' This made it easy for poachers to transmit illicitly.[18] The RSNT and the Informal Composite Negotiating Text have endeavored to identify jurisdictions having competence to prosecute and punish unauthorized broadcasting from the high seas. Pursuant to Article 97 of the former and

---

[16]Ferrer, The Brussels Convention, *supra* note 6, at 29.

[17]U.N. Dec. A/Conf. Ga/WP, 8/Rev. I/Part II. For an early analysis *see* Soronson, *Pirate Broadcasting from the High Seas,* Legal Essays 319 (1963). The ITU Radio Regulations prescribed limits on radio broadcasting from beyond national territory. Art. 7, Sec. 1, R. 422 and Art. 28, Sec. 6, R. 962 of the ITU. Radio Regulations, Dec. 1959, 12 U.S.T. 2377, T.I.A.S. No. 4893. In 1965 the Council of Europe reached agreement preventing ships on the high seas from broadcasting into national territories. Article 109 of the Informal Composite Negotiating Text of July 15, 1977, repeats the terms of Article 97.

[18]van Panhuys and van Emde Boas, *Legal Aspects of Pirate Broadcasting,* 60 Am. J. Int'l. L. 303, 306 (1966). *Compare* Hummings, *Pirate Broadcasting in European Waters,* 14 Int'l & Comp. L.Q. 410, 413-436 (1965); Woodliffe, *Some Legal Aspects of Pirate Broadcasting in the North Sea,* 12 Neth. Int'l L. Rev. 365 (1965).

Article 109 of the latter, illegal broadcasters "may be prosecuted before the court of the flag State of the vessel, the place of registry of the installation, the State of which the person is a national, any place where the transmissions can be received or any State where authorized radio communications is suffering interference." Reference to "any place where the transmissions can be received" would include receptions having an impact on land, in airspace, and in the space environment, as well as ocean areas. Sanctioning power has been included within the terms of the article. The emphasis is on self-help on the high seas, with the provision that a State having jurisdiction may on the high seas "arrest any person or ship engaged in unauthorized broadcasting and seize the broadcasting apparatus." Thus, the places where the harm is experienced (land, airspace, space environment, oceans) are clearly distinguished from the place where the protective action is to be permitted (high seas).

Article 3 of the Brussels Convention refers to the direct reception of signals emanating from a satellite. Clearly this language excludes events taking place in the space environment as opposed to those occurring on or from the territory of a State. Its terms are: "This Convention shall not apply where the signals emitted by or on behalf of the originating organization are intended for direct reception from the satellite by the general public."

The place where distributions of intellectual property occur remains of concern to the owners of such property and to those who have distributed property-laden programs via satellite. Prior to the insertion into Article 3 of the provision excluding its application to transmissions by satellite for direct reception by the general public, the governments of Germany and Austria sought to introduce language protective of rights in intellectual property, including an identification of where invasions of such rights take place. They relied on views expressed during the negotiations, and added:

> that where a satellite is used for the distribution of program-carrying signals made directly by the satellite itself, the originating organization, even without the insertion of such a provision in the Convention, is responsible for the distribution vis-a-vis the authors, performers, producers of phonograms and broadcasting organizations and cannot plead that the distribution was made in space and thus outside the sphere of application of any national law. However, since this view is disputed in legal literature it appears highly desirable to clarify the question by inserting an express provision.[19]

Patermann notes that under the German "Bundeltheorie," protection for copyrights and industrial property is granted "against actions and effects occurring within the territory of those countries which confer or recognize such rights. . ."[20] In tort cases he urges that the place of the harm should be considered to be the place of the reception of the broadcast.

---

[19]13 Int'l Leg. Mat., *supra* note 5, at 1462. *Compare* Patermann, *The Question of the Law Applicable to the Case of Damage Caused by Direct Satellite Broadcasts* (Torts by TV Broadcasting), Proc. of the 16th Colloquium of the Law of Outer Space, Int'l Inst. Space L. 75 (1974).

[20]Patermann, *supra* note 19, at 80 n. 3.

Article 3 of the Convention constitutes an exception to the duty set out in Article 2 (1) whereby signatories are to take adequate measures to prevent the distribution of derived signals. It is the purpose of Article 3 to exclude from the coverage of the Convention the retransmission of signals obtained from direct broadcast satellites. However, signatory States are still obliged to be aware of the fact that poachers may come into possession of signals from point-to-point of community- type satellite broadcasts, and that poachers might then wish to broadcast such information through a direct broadcast satellite. Signatory States must prevent these uses of such satellites. This meaning has been confirmed as follows:

> Where the signals are coming down from a DBS, their distribution is now outside the Convention by virtue of Article 3, but where the signals are received from another type satellite, they cannot be retransmitted by an unintended distributor, even if he is using a DBS for the purpose.[21]

This being the case it can be argued that Article 97 of the RSNT, and Article 109 of the Informal Composite Negotiating Text, while designed to prohibit the transmission of certain signals, does not purport to prohibit the retransmission from high seas vessels of satellite signals intended for direct reception by individuals who have received such signals from an originating organization. Such an organization is the natural or juridical entity that decides what program emitted signals will carry. It is to be recalled that emitted signals are those that pass through a satellite. Thus, a ship would seem—at least pursuant to the Brussels Convention—to be a lawful place from which to rebroadcast signals received from a satellite for the direct reception of the general public. That such rebroadcasts, seemingly not subject to the same constraints as broadcasts on or from territory, should be able to claim the exception set out in Article 3 of the Brussels Convention may not serve the general interests of the community.

Where the broadcasts from ships have not been a part of a satellite-based chain of transmission, such broadcasts pursuant to the RSNT and to the Informal Composite Negotiating Text would be treated as being unauthorized. The specific obligations contained in Article 2 of the Brussels Convention would be inapplicable to such broadcasts. However, the original emission of signals from such ships, and their redistribution, through point-to-point broadcasting techniques to unwilling States finds no support in general international law. From a practical point of view an unwilling State may have reference to traditional blocking procedures.[22]

It has been observed that if a State is bound by a specific convention, or by general rules of international law, and fails to secure the implementation of necessary measures, and at the same time is unwilling to "submit the matter to international adjudication,

---

[21] 13 Int'l Leg. Mat., *supra* note 5, at 1457.

[22] van Panhuys and van Emde Boas, *supra* note 18, at 303. *See also* Piradov, ed., International Space Law 190-192 (1976), who speaks of the right of a State to prevent the reception within its territory of foreign broadcasts.

the coastal state might well take measures of self-help."[23] All of this assumes, however, that there are suitably clear international legal principles and rules specifying what constitutes an unlawful interference in the affairs of a receiving State that has been made the object of foreign broadcasts.

Article 7 in dealing with the prevention of monopolistic abuses took into account the need to identify the source of the law to be applied. It was agreed that each signatory would be allowed to apply its own municipal law in such circumstances. According to Ferrer, Article 7 prevents the Convention from being "interpreted as limiting the right of States to apply their international legislation to preclude the abuse caused by monopolies."[24]

Article 8 dealt with reservations to the Convention. During the negotiations it had been observed that nationality was not the sole basis for the exercise of jurisdiction where distributions, pursuant to Article 2, were to be regulated. Some States base jurisdiction on the place from which signals were emitted. With differing outlooks on the subject of jurisdiction, Article 8 of the Convention allows a signatory to declare that for "its purposes the words 'where the originating organization is a national of another Contracting State' appearing in Article 2 (1) shall be considered as if they were replaced by the words 'where the signal' is emitted from the territory of another Contracting State." The foregoing language allows affected States to reject the nationality of the originating organization as the sole criterion for the applicability of the Convention. Such rejecting States can use the place from which the signals are emitted as the basis of jurisdiction.

IV. OUTLOOK OF THE LESS-DEVELOPED COUNTRIES

It is possible that the less-developed countries will favor the reception of satellite broadcasts through home receivers. This would relieve them of the high costs required by the installation of expensive antenna and the retransmission of derived signals to point-to-point receivers for further rebroadcast to the final recipient. Without the ownership or control of such facilities the less-developed countries could possibly become the recipients of unacceptable program content. During the negotiations the government of Kenya urged that the Convention should not prohibit rebroadcasts by poachers who had obtained signals that had been received from direct broadcast satellites.

Article 4 (iii) of the Convention takes into account specific needs of the less-developed countries and therefore allows them an exception from their Article 2 (1) duty. They are under no duty to take adequate measures to prevent the distribution on

---

[23] *Id.*, at 318.

[24] Ferrer, *supra* note 6, at 1461.

or from their territory of a program carried by an emitted signal, when the distributor in the receiving State was not intended to receive the signal, "provided that the distribution is solely for the purpose of teaching, including teaching in the framework of adult education, or scientific research."

The negotiations provided clarification concerning the meaning to be attributed to the word "teaching." The United States representative suggested that the reference to teaching in an adult framework included any kind of systematic instructional activities. This would mean that guidance would be received from the 1971 texts of the International Telecommunication Union Convention and the Universal Copyright Convention, which have been construed to include "all conventional forms of teaching at every level of education, and instructional television as distinguished from general programming that is cultural or informational in character."[25]

The Convention is to be interpreted to restrict this exception in favor of the less-developed countries, as well as other exceptions dealing with informatory current events and short quotations, to the obligations contained in the agreement. Article 4 will not supersede obligations assumed by States in existing copyright conventions, in the 1961 Rome Convention (relating to performers, producers of phonograms, and broadcasting organizations), and the ITU Convention. The exceptions in favor of the developing countries established rules to be applied exclusively to international situations. Thus, it has been noted that none of the terms of the Convention "can have any sort of binding effect on the laws governing exclusively domestic situations in a Contracting State."[26] The exception is not intended to provide any exemption from the municipal laws of States parties to the Convention when such local laws prohibit poaching or transmitting of poached materials. The exemption is solely for the benefit of less-developed countries in the area of educational materials where the information has been broadcast to the country from abroad.

V. PRINCIPAL DIFFERENCES AT THE CONFERENCE

States perceived the objectives of the Brussels Conference differently. Some found it difficult to separate the program content of broadcasts from broadcasts themselves. Those who wished to write into the Convention provisions dealing with program content wished to impress duties on originating States. The socialist States were the chief proponents of this approach. When it was not accepted at the Conference they persuaded the participants that a letter should be forwarded by the Conference to the Secretary-General of the United Nations in which their outlooks were reflected. The letter stated:

---

[25] 13 Int'l Leg. Mat., *supra* note 5, at 1461.

[26] *Id.*

> Each Contracting State shall undertake to exclude in all cases from programs transmitted via satellite any material detrimental to the maintenance of international peace and security, publicizing ideas of war, national and racial hatred and aimed at interfering in the domestic affairs of other States or undermining their national laws, customs and traditions.[27]

The final draft of the Convention did not impose requirements on originating States to control program content. This approach corresponds with the traditional role of communications conventions since they have sought to facilitate the broadcast and reception of transmissions. The socialist States did not sign the Convention prior to the cutoff date in March 1975.[28]

Although the Convention did not apply to direct broadcast satellites, it was conceded that the principle that no State was obliged to give its consent prior to broadcasts would apply as readily to transmissions between national services and community receivers as to direct broadcasts. General awareness of these practical conditions raised the issue whether any transmissions of signals involving satellites should take place from a State without the prior consent of the sending State. Within the narrow terms of the Convention this issue was resolved through the acceptance of the view that no such obligations should be imposed on originating States.

The Conference did not become deeply involved in attempting to identify the ramifications suggested in General Assembly Resolution 110. This allowed the fundamental differences relating to the free transmission of information and the refusal to allow some information to cross national boundaries to remain unresolved. However, to the extent that a receiving State was to allow transmissions making use of satellites to enter that State, other than direct broadcast satellite transmissions, then the receiving State was obliged to take measures to prevent such transmission, irrespective of content, from being conveyed to an unintended receiver.

That the Conference finally engaged only in a piecemeal approach to satellite communications was neither a strength nor a weakness. The imposition of the mentioned obligations on the receiving States was a valid achievement. The inability to cope with the DBS situation was not a failure, since it was recognized by all that this was a matter that was enormously complex and was, in fact, a matter that had long engaged, and continued to engage, the attention of COPUOS.

The Convention did erect new legal rights and duties for the participating States. In the normal course of events it is probable that disputes may arise as to the meaning of

---

[27] *Id.* at 1466. *Compare* the U.S.S.R. Protocol of May 10, 1974; *id.* at 1454. The antecedents of this position can be traced to General Assembly Resolution 110, adopted November 3, 1947. This concern has been stated in numerous resolutions of the General Assembly and international agreements, including the 1967 Principles Treaty. The latter considered General Assembly Resolution 110 as being applicable to the space environment.

[28] Yugoslavia deposited its ratification on December 29, 1976.

the Convention and whether signatories are in compliance. With this in mind it would have been helpful if the negotiators had given some attention to procedures for the resolution of disputes. That this is a subject well suited to the attention of negotiators is seen in the fact that several articles are devoted to this subject in the 1972 Convention on International Liability for Damage Caused by Space Objects. There are several detailed provisions for the resolution of deep-sea bed and ocean disputes set out in the RSNT and in the Informal Composite Negotiating Text of the Third United Nations Conference on the Law of the Sea. Further, the Swedish-Canadian Draft Principles Governing Direct Television Broadcasting by Satellite has pointed in this direction. It suggested the incorporation of such techniques as conciliation, mediation, arbitration, or judicial settlement. COPUOS, in its discussions on DBS, has encountered the problem of dispute resolution. It has advanced the view that if consultations do not resolve such disputes such matters should be referred to established procedures of peaceful settlement.

It could be argued that the Conference failed to acheive major protections for the owners of intellectual property. But, as has been observed, there are other ways to achieve this worthwhile objective. One is to look to the municipal laws of States. Another is to rely on existing or future private international law agreements put forward under the sponsorship of international organizations wholly concerned with intellectual property rights. Once international legal standards are agreed upon in such institutions, signatory States can be asked to modify their municipal laws to support such standards. Without getting totally entangled in the political-legal morass of control over program content, the Brussels Convention did, in effect, provide monetary protections to the owners of intellectual property. Signatory States must take reasonable measures within their areas of jurisdiction to prevent the distribution of such property to unintended receivers and the areas served by them. Thus, a market for such programs still remains to the owner of such intellectual property.

VI. CONCLUSION

Satellite science and technology has continually extended television broadcast capabilities. The need has been seen to establish workable rules protecting such broadcasts. The purpose of the 1974 Brussels Convention was to protect property rights in programs broadcast with the assistance of satellites against poachers who might intercept and rebroadcast such programs. Associated with this goal was that of assuring reception by the legitimate purchaser of the program. The unimpeded delivery of such programs constitutes an assurance that there will be a free flow of information, and this in turn will contribute to the worldwide expectations summarized under the heading of human rights.

The Convention did not offer to States any authority over the formation or control of the program content of materials transmitted by satellite. The Convention, on the other hand, did not impose limitations on States seeking to prevent the delivery of foreign-based programs to the broadcast services of receiving States or to other receivers within the territory of such receiving States. The Convention did not impose on potential receiving States the human rights convictions of broadcasting States. No inhibitions concerning the traditional practice of jamming foreign broadcasts were considered. Thus, at least two techniques for denying access of outside information were contemplated. First, the broadcast service of a potential receiving State remains under no obligation to enter into a contract with the broadcast service of a potential sending State. Second, traditional jamming practices were not prohibited.

The agreement did not apply to direct broadcasts through satellites to the general public. It emphasized the broadcast of derived signals which were defined as the product of a modification of the technical characteristics of an initially emitted signal.

Ratifying States are expected to employ suitable municipal measures to make sure that broadcast facilities within their territories or jurisdiction are not employed to transmit foreign programs to unintended receivers. The Convention, when it enters into force, can serve several important value-oriented objectives. First, it can protect the creators of intellectual property against those who would convert it to their own use without respecting the property rights of the creators. Second, through normalizing the foregoing right, it may be possible to stimulate human ingenuity on a worldwide basis with the expectation that the product of such creativity will receive a wider distribution than otherwise would have been the case. On balance, the Convention can be regarded as a constructive step toward the regulation of space environment activities. It can help to facilitate a maximum amount of order in the space environment. Steps such as this can contribute beneficially to the application of the potential of space to the legitimate needs of mankind.

Because of the limited acceptance accorded to the Brussels Convention, and the need to continue to secure larger protections for the intellectual property that is disseminated by satellite, the legal subcommittee of COPUOS in 1976 turned its attention to "copyright and neighboring rights." Working Group II of the subcommittee has set out a proposed principle reading:

> Without prejudice to the relevant provisions of international law, States should cooperate on a bilateral and multilateral basis for protection of copyright and neighboring rights by means of appropriate agreements between the interested States. In such cooperation they should give special consideration to the interests of developing countries in the use of direct televison broadcasting for the purposes of accelerating their national development.[29]

[29]U.N. Doc. A/AC.105/WG.8/L.4 (1973).

It is obvious that much more than the protection of property rights in intellectual property is foreseen in the foregoing formulation. There continues to be an intermingling of property rights, human rights, sovereign concerns affecting the free transmission of information, and claims for special consideration on the part of the developing countries.[30] All of these must be considered together in a political forum such as the United Nations. The fact that attention is being given to the value of intellectual property, as it is considered in a mixed context, is in itself quite noteworthy.

---

[30] *See generally*. Christol, *Space Joint Ventures: The United States and the Developing Nations,* 8 U. Akron L. Rev. 398 (1975); Christol, *International Space Law and the Less Developed Countries,* Proc. of the 19th Colloquium on The Law of Outer Space, Int'l Inst. Space Law 243 (1977); U.N. Doc. A/AC.105/171, Annex II, 1 (1976).